

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:
JUSTICE SHAHID BILAL HASSAN
JUSTICE SHAKEEL AHMAD

C.P.L.A.No.3939 of 2025

[Against judgment dated 03.06.2025 passed in C.R.No.06 of 2019 by Islamabad High Court, Islamabad]

Mst. Safia Khanum and others

...Petitioner(s)

Versus

Additional District Judge-II East, Islamabad and others

...Respondent(s)

For the Petitioner(s) : Mr. Muhammad Ikhlauque Awan, ASC

For Respondent(s) : N.R.

Date of Hearing : 06.01.2026

ORDER

SHAHID BILAL HASSAN-J: This petition under Article 185(3) of the Islamic Republic of Pakistan, 1973, seeking leave to appeal, has been filed against judgment dated 03.06.2025 passed in C.R.No.06 of 2019 by Islamabad High Court, Islamabad.

2. Facts can easily be recapitulated from the impugned judgment, which do not need to be reproduced here.

3. Heard.

4. Considering the arguments and perusing the record, it has surfaced that earlier, Mr. Mehboob Sultan (late), predecessor in interest of the petitioners instituted a suit for declaration and cancellation of basic mutation No.1670/1940 in the year 1991, which was contested by the rival party and the same was dismissed on 14.01.2002, which judgment and decree was upheld in appeal on 16.02.2004. The revision petition filed there-against was also dismissed on 08.06.2015 by the Islamabad High Court. It has been noted that second suit was instituted germane to rectification of mutation No.1670/1940 *ibid* by the petitioner(S) for the same cause of action on 13.06.2014, which was dismissed in default on 15.10.2016. The petitioner(s) filed an application seeking restoration of the suit alongwith an application for withdrawal of the suit but the same was dismissed and no permission was granted to file a fresh suit. Instead of agitating the said issue further before the higher forum, the petitioner(s) instituted a third suit for declaration, cancellation of mutation No.8225/2014 which was sanctioned in culmination of correction of mutation No.1670/1940 *ibid* (the basic mutation). It is

notable fact that correction in mutation No.1670/1940 dated 27.04.1940 was made vide order dated 01.04.2014 by Additional Deputy Commissioner Revenue/District Collector, ICT, Islamabad and review thereagainst before the Additional Deputy Commissioner Revenue was dismissed on 10.11.2015. However, instead of agitating matter before the higher revenue hierarchy, the petitioner(s) opted to institute a suit for declaration before the Civil Court. The learned Islamabad, on this point, while elaborating and adhering to the 'doctrine of election' has rightly appreciated judgment rendered by this Court in Trading Corporation of Pakistan¹ case, because when a person chooses to initiate proceedings through forum parallel to other forum, he cannot recourse to the other one by abandoning the election already made and such action is barred under Order II Rule 2 read with Article 114 of the Qanun-e-Shahadat Order, 1984.

It is evident from the record that no permission to file a fresh suit was granted by the learned trial Court as the application for restoration and withdrawal was dismissed and instead of knocking the door of higher forum the petitioners instituted the third suit, which was blatantly barred by Order XXIII, Rule 1 of the Code of Civil Procedure, 1908 and the ratio of judgments² on the subject has rightly been appreciated.

5. In view of the above discussion, when all the three Courts below have concurrently, while construing law on the subject, non-suited the petitioner(s) and during course of arguments, no substantial question of law and any illegality in the impugned judgment has been pointed out by the learned counsel for the petitioner(s), warranting interference by this Court, we are not inclined to grant leave to appeal to the petitioner(s). As such, no case for grant of leave is made out. The petition in hand fails and the same is dismissed. Leave is refused.

JUDGE

JUDGE

Islamabad
06th January, 2026
'APPROVED FOR REPORTING'
M.A. Hassan

¹ *Trading Corporation of Pakistan v. Devan Sugar Mills Limited and others* (PLD 2018 Supreme Court 828)

² *Khawaja Bashir Ahmed and sons Pvt. Ltd. v. Messrs Martrade Shipping and Transport and others* (PLD 2021 Supreme Court 373), *Muhammad Yar (Deceased) through L.Rs. and others v. Muhammad Amin (Deceased) through L.Rs. and others* (2013 SCMR 464), *Muhammad Ali and others v. Province of Punjab and others* (2009 SCMR 1079), *Aziz Ahmad and others v. Mst. Hajran Bibi and another* (1987 SCMR 527) and *Jubilee General Insurance Co. Ltd., Karachi v. Ravi Steel Company, Lahore* (PLD 2020 Supreme Court 324)